

Multiple Choice

1. **Answer:** A

Options: A) Prior notice and prior evidentiary hearing; B) Prior notice and opportunity to respond; C) Prior screening by neutral fact finder; D) Prior screening and subsequent evidentiary hearing

Note: The correct answer is based on the principle that both the termination of a parent's custody rights and welfare benefits involve significant deprivation of fundamental rights, which necessitates due process protections including prior notice and an evidentiary hearing to ensure fairness and an opportunity to contest the action.

2. **Answer:** A

Options: A) The law is necessary to achieve a compelling government purpose.; B) The law is substantially related to an important government purpose.; C) The law is rationally related to a legitimate government purpose.; D) The law is substantially related to a legitimate government purpose.

Note: For a voting law to be upheld by the court, it must demonstrate that it serves a compelling government interest and is necessary to achieve that purpose, aligning with strict scrutiny standards in constitutional law.

3. **Answer:** B

Options: A) Indisputable facts.; B) Facts that have been asserted by individual political organizations.; C) Facts recognized to be true by common knowledge.; D) Facts capable of scientific verification.

Note: Facts asserted by individual political organizations are not appropriate for judicial notice because they are subjective and not universally accepted or verifiable, unlike judicially noticeable facts that are generally known or capable of accurate and ready determination.

4. **Answer:** B

Options: A) Executive agreements, U.S. Constitution, treaties and federal statutes, state law; B) U.S constitution, treaties and federal statutes, executive agreements, state law; C) Treaties and federal statutes, US Constitution, executive agreements, state law; D) U.S constitution, executive agreements, treaties and federal statutes, state law

Note: This answer is correct because it reflects the supremacy clause in the U.S. Constitution, which establishes that the Constitution is the highest law of the land, followed by treaties and federal statutes, with executive agreements and state laws being subordinate to these higher forms of law.

5. **Answer:** A

Options: A) Defendant is deaf, and is accused of being negligent in failing to heed a warning bell.; B) Defendant has poor judgment.; C) Defendant is hot-tempered and

damaged property in a tantrum.; D) Defendant has an I.Q. of 85.

Note: The correct answer reflects the principle that the standard of care for negligence is adjusted based on a defendant's individual circumstances, such as a disability, which in this case is the defendant's deafness, making it unreasonable to expect them to heed a warning bell they cannot hear.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: Common law burglary specifically requires a breaking and entry of a dwelling at night, as it was traditionally defined to protect against the heightened risk of crime during nighttime hours.

7. **Answer:** False

Options: A) True; B) False

Note: Discriminatory effect alone is insufficient to establish governmental intent to discriminate in constitutional law; courts require evidence of discriminatory purpose or motivation to demonstrate a violation of equal protection principles.

8. **Answer:** True

Options: A) True; B) False

Note: Cold pursuit does not qualify as a recognized exception to the warrant requirement under the Fourth Amendment, as it lacks the immediacy or exigency typically necessary for warrantless searches.

9. **Answer:** False

Options: A) True; B) False

Note: The Rule in Shelley's Case does not invalidate future interests; rather, it creates a merger of a life estate and a remainder in one person only under specific circumstances, allowing the remainder to become a fee simple rather than invalidating it.

10. **Answer:** False

Options: A) True; B) False

Note: The statement is false because the necessary and proper clause does not grant unlimited power to Congress; it must be accompanied by an enumerated power in the Constitution to justify the enactment of federal laws.

Long Form Response

11. **Answer:** The imposition of the death penalty in cases involving the murder of law enforcement officers, such as the shooting of a police officer during an attempted bank robbery, can be justified under several constitutional considerations. First, the Eighth Amendment's prohibition against cruel and unusual punishment permits capital punishment for particularly heinous crimes that threaten societal order and the safety of

law enforcement personnel. The argument often hinges on the state's interest in deterring violent crime and protecting those who serve on the front lines. Additionally, the Supreme Court's decisions in cases like *Gregg v. Georgia* affirm that the death penalty can be applied in circumstances where the crime reflects an extreme disregard for human life, particularly when law enforcement is targeted. Thus, the nature of the offense, the role of the victim, and the societal need for law enforcement protection contribute to the constitutional justification for capital punishment in such cases.

Note: correct because it references the Eighth Amendment's allowance for capital punishment in response to grave offenses that jeopardize public safety and the rule of law, particularly in cases involving the murder of law enforcement officers who are essential to maintaining societal order.

12. **Answer:** In the context of transactions between merchants, additional terms proposed in the acceptance of offers generally become part of the contract, unless the original offer expressly limits acceptance to the terms stated therein or the additional terms materially alter the contract. This principle, rooted in the Uniform Commercial Code (UCC), emphasizes that the parties involved in commercial transactions often operate under a framework of mutual agreement that extends beyond initial offers. Consequently, as long as the additional terms do not contradict the fundamental aspects of the offer, they are incorporated into the contract, thereby reflecting the dynamic nature of commercial relationships. This acceptance of additional terms promotes flexibility and adaptability in negotiations, while also ensuring that both parties are held accountable to the complete agreement established through their interactions.

Note: correct because it accurately reflects the UCC's provisions regarding the acceptance of offers between merchants, specifically that additional terms can become part of the contract unless they materially alter the agreement or the original offer restricts acceptance to its stated terms.